

IN THE SENATE

SENATE BILL NO. 1237

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO VOTERS; REPEALING SECTION 34-1114, IDAHO CODE, RELATING TO A VOTER'S AFFIDAVIT IN LIEU OF PERSONAL IDENTIFICATION; AMENDING SECTION 34-409, IDAHO CODE, TO REMOVE A CODE REFERENCE AND TO MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 34-1012, IDAHO CODE, TO REMOVE A CODE REFERENCE AND TO MAKE A TECHNICAL CORRECTION; AMENDING SECTION 34-1106, IDAHO CODE, TO REMOVE A PROVISION REGARDING PERSONAL IDENTIFICATION AFFIDAVITS AND TO MAKE A TECHNICAL CORRECTION; AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section [34-1114](#), Idaho Code, be, and the same is hereby repealed.

SECTION 2. That Section 34-409, Idaho Code, be, and the same is hereby amended to read as follows:

34-409. ELECTRONIC REGISTRATION. (1) The office of the secretary of state may create and maintain an electronic system for voter registration that is publicly available on its official website. Any qualified elector who has a current valid driver's license or identification card issued pursuant to title 49, Idaho Code, that reflects the person's current principal place of residence, may register to vote by submitting a completed voter registration application electronically through such website. Electronic voter registration applications shall be submitted before the close of registration as provided in section 34-408, Idaho Code.

(2) The electronic voter registration application shall be in a form prescribed by the secretary of state and shall:

(a) Require the information under oath or affirmation set forth in section 34-411, Idaho Code;

(b) Include notice of the requirement to provide personal identification before voting at the polls as set forth in ~~sections~~ section 34-1113 and ~~34-1114~~, Idaho Code; and

(c) Require an electronic signature of the applicant.

(3) The office of the secretary of state shall obtain a digital copy of the applicant's driver's license or identification card signature from the Idaho transportation department. The Idaho transportation department shall, upon request of the office of the secretary of state, provide a digital copy of the applicant's driver's license or identification card signature.

(4) Upon receipt of a completed voter registration application and a digital copy of the applicant's driver's license or identification card signature from the Idaho transportation department, the office of the secretary of state shall send the information to the county clerk for the county

1 in which the applicant resides. The county clerk shall prepare and issue to
 2 each elector registering electronically a verification of registration con-
 3 taining the name and residence of the elector and the name or number of the
 4 precinct in which the elector resides. Such verification of registration
 5 may be sent by nonforwardable ~~first-class~~ first class mail or by electronic
 6 mail at the elector's option. If a verification is returned undeliverable,
 7 then the county clerk shall remove the elector from the register of electors.

8 (5) An applicant using the electronic system for voter registration
 9 pursuant to this section shall not be required to complete a printed regis-
 10 tration card.

11 (6) The office of the secretary of state shall use such security mea-
 12 sures necessary to ensure the accuracy and integrity of an electronically
 13 submitted voter registration application.

14 SECTION 3. That Section 34-1012, Idaho Code, be, and the same is hereby
 15 amended to read as follows:

16 34-1012. ALTERNATIVE PROCEDURES FOR ABSENTEE VOTING -- EARLY VOT-
 17 ING. (1) Those counties that utilize absentee voting facilities that have
 18 access to the Idaho statewide voter registration system and count ballots at
 19 a central location or utilize a polling location-based tabulation system may
 20 elect to conduct "early voting" according to the provisions of this section.
 21 For those counties that elect to do "early voting," early voting shall begin
 22 on or after the fourth Monday before the election and end at 5:00 p.m. on
 23 the Friday before the election. Primary election ballots shall be issued
 24 pursuant to section 34-1002(2), Idaho Code.

25 (2) A voter who appears at an "early voting" station to vote shall state
 26 his or her name and address to the election official and present the voter's
 27 identification as required by ~~sections~~ section 34-1113 and ~~34-1114~~, Idaho
 28 Code.

29 (3) The election official shall examine the records to ascertain
 30 whether or not such applicant is registered and lawfully entitled to vote
 31 as requested. The provisions of section 34-408A, Idaho Code, authorizing
 32 election day registration shall also apply in determining the applicant's
 33 qualifications to vote.

34 (4) Before receiving a ballot, each elector shall sign his or her name
 35 in the election register and poll book provided for early voting.

36 (5) The elector shall then be given the appropriate ballots contain-
 37 ing the official election ballot identification pursuant to section 34-901,
 38 Idaho Code, and shall be given folding instructions for such ballots, if ap-
 39 propriate.

40 (6) Upon receipt of the ballots, the elector shall retire to a vacant
 41 voting booth and mark the ballots according to the instructions provided.

42 (7) After marking the ballot, the elector shall present himself or her-
 43 self to the election official at the ballot box and state his or her name and
 44 address. The elector shall then deposit the ballot in the ballot box or hand
 45 it to the election official, who shall deposit it. The election official
 46 shall then record that the elector has voted and proclaim the same in an audi-
 47 ble voice.

48 (8) Voters requiring assistance shall be provided with such assistance
 49 in accordance with section 34-1108, Idaho Code.

1 (9) Electioneering is prohibited at an early voting polling place as
2 provided in section 18-2318, Idaho Code.

3 SECTION 4. That Section 34-1106, Idaho Code, be, and the same is hereby
4 amended to read as follows:

5 34-1106. SIGNING COMBINATION ELECTION RECORD AND POLL BOOK -- DELIV-
6 ERY OF BALLOT TO ELECTOR. (1) An elector desiring to vote shall state his
7 name and address to the judge or clerk in charge of the combination election
8 record and poll book.

9 (2) Before receiving his ballot, each elector shall sign his name in
10 the combination election record and poll book following his name therein
11 and show a valid photo identification as provided for in section 34-1113,
12 Idaho Code, ~~or personal identification affidavit as provided for in section~~
13 ~~34-1114, Idaho Code.~~

14 (3) No person shall knowingly sign his name in the combination election
15 record and poll book if his residence address is not within that precinct at
16 the time of signing.

17 (4) If the residence address of a person contained in the combination
18 election record and poll book is incorrectly given due to an error in prepa-
19 ration of the combination election record and poll book, the judge shall as-
20 certain the correct address and make the necessary correction.

21 (5) The elector shall then be given the appropriate ballots ~~which that~~
22 have been marked with the official election ballot identification and shall
23 be given folding instructions for such ballots.

24 SECTION 5. This act shall be in full force and effect on and after Jan-
25 uary 1, 2027.